

Family Courts (Other Qualification for appointment of Judges) Rules, 1988

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Family Courts (Other Qualification for appointment of Judges) Rules, 1988

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Rule FAMILY-COURTS-OTHER-QUALIFICATION-FOR-APPOINTMENT-OF-JUDGES-RULES-1988 of 1988

Published on 31 May 1988

Commenced on 31 May 1988

[This is the version of this document from 31 May 1988.]

[Note: The original publication document is not available and this content could not be verified.]

Family Courts (Other Qualification for appointment of Judges) Rules, 1988

Published vide Notification No. G.S.R. 678 (E), dated 31st May, 1988, published in Gazette of India, Extraordinary, Part 2, section 3, sub-section (1), dated 2nd June 1988

Ministry of Law and Justice

(Department of Justice)

G. S. R. 678(E). - In exercise of the powers conferred by sub-section (I) of section 22 of the Family Courts Act, 1984 (66 of 1984

), the Central Government, with the concurrence of the Chief Justice of India, hereby makes the following Rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Family Courts (Other Qualification for appointment of Judges) Rules, 1988.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Other qualifications for appointment of a Judge.

- A person shall not be qualified for appointment as a Judge of a Family Court unless he fulfills the conditions specified in clause (a) or clause (b) of sub-section (3) of section 4 of the Family Courts Act, 1984 (

66 of 1984

) or possess the following other qualifications, namely:-

(i)

a Post-Graduate in Law with specialisation in Personal Laws;

Or

a Post-Graduate degree in Social Sciences such as Master of Social Welfare, Sociology, Psychology/Philosophy with a Degree in Law; and

(ii)

at least seven years experience in field work/research or of teaching in a Government Department or in a College/University or a comparable academic institute, with special reference to problem of women and children;

Or

seven years' experience in the examination and/or application of Central/State Laws relating to marriage, divorce, maintenance, guardianship, adoption and other family disputes.

3.

Decision of questions.

- If any question arises about the interpretation of the provisions of these Rules, the Central Government shall decide the same.

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